

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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JEREMY ZABALA,

SUMMONS

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE MICHAEL
KLEIN, P.O. JOHN DOE #1 and P.O. JOHN DOE #2,

Defendants.

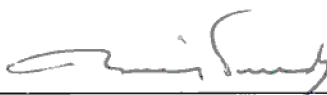
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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve your answer on Plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York). If you fail to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates Queens County as the venue for trial based on the location of the incident.

Dated: Forest Hills, NY
October 23, 2023

Yours, etc.,



Law Office of Michael Dreishpoon, P.C.
Michael Dreishpoon, Esq.
Attorneys for Plaintiff
JEREMY ZABALA
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

DETECTIVE MICHAEL KLEIN
100 Church Street
New York, NY 10007

P.O. JOHN DOE #1
100 Church Street
New York, NY 10007

P.O. JOHN DOE #2
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
JEREMY ZABALA,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, DETECTIVE MICHAEL
KLEIN, P.O. JOHN DOE #1 and P.O. JOHN DOE #2,Defendants.
-----X

Plaintiff, JEREMY ZABALA, by his attorneys, the Law Office of Michael Dreishpoon,
P.C., complaining of the Defendants, alleges, upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff, JEREMY ZABALA, was and remains a resident of Queens County, NY.
2. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, was and remains a domestic municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York..
3. At all times herein mentioned, Defendant, DETECTIVE MICHAEL KLEIN, was an employee of the New York City Police Department (hereinafter "the NYPD").
4. At all times herein mentioned, Defendants, P.O. JOHN DOE #1 and P.O. JOHN DOE #2, were employees of the NYPD.

**ALLEGATIONS PERTAINING
TO ALL OF PLAINTIFF'S CLAIMS**

5. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, maintained, managed, supervised, and controlled the NYPD as part of, and in conjunction with, its municipal functions.

6. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, employed and supervised DETECTIVE MICHAEL KLEIN, P.O. JOHN DOE #1 and P.O. JOHN DOE #2.
7. DETECTIVE MICHAEL KLEIN, P.O. JOHN DOE #1 and P.O. JOHN DOE #2 are graduates of the NYPD's Police Academy.
8. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train, within the Police Academy and at the command, precinct, and patrol levels, DETECTIVE MICHAEL KLEIN, P.O. JOHN DOE #1 and P.O. JOHN DOE #2, and to conform their conduct to a standard for the protection of individuals, such as Plaintiff, against the unreasonable risk of harm by conducting themselves in such a manner so as to not intentionally, wantonly and/or negligently injure citizens such as Plaintiff.
9. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train, within the Police Academy and at the command, precinct, and patrol levels, DETECTIVE MICHAEL KLEIN, P.O. JOHN DOE #1 and P.O. JOHN DOE #2 in the protection of the rights of Plaintiff under the Constitution of the United States of America.
10. Upon information and belief, at all times herein mentioned, DETECTIVE MICHAEL KLEIN, P.O. JOHN DOE #1 and P.O. JOHN DOE #2 were acting in their capacity as employees, agents, and/or servants of Defendant, THE CITY OF NEW YORK.
11. At all times hereinafter mentioned, Defendants were acting under the color of state law and their acts constituted "state action."
12. On Friday, August 19, 2022, Plaintiff and his wife returned home from dinner at

approximately 7:00 P.M. and sat on the front stoop of their building, located at 98-07 Atlantic Avenue, Woodhaven, NY 11421.

13. While Plaintiff and his wife were sitting on their front stoop, P.O. JOHN DOE #1 and P.O. JOHN DOE #2 approached, then approximately four police vehicles arrived.
14. One of the John Doe officers showed Plaintiff a photo of a Wanted poster depicting Plaintiff and asked, "is this you?"
15. Plaintiff continually replied by asking what was going on. Eventually, the John Doe officers handcuffed Plaintiff and took him to the 102nd Precinct where he was confined in a cell for approximately four hours.
16. Plaintiff was then taken to an interview room and questioned by two detectives who said they would arrest him, showed him a video of a shooting, and accused Plaintiff of being the shooter, which Plaintiff denied.
17. Plaintiff was arraigned on Saturday, August 20, 2022 near midnight. Bail was set and Plaintiff was taken to Rikers Island. Bond was posted on Sunday, August 21, 2022 and Plaintiff was released from Rikers on Monday, August 22, 2022 at approximately 11:30 A.M.
18. DETECTIVE MICHAEL KLEIN signed a Criminal Complaint falsely accusing Plaintiff of Attempted Murder in the Second Degree, Attempted Assault in the First Degree, Criminal Possession of a Weapon in the Second Degree, Reckless Endangerment in the First Degree, and Criminal Possession of a Firearm, all of which Plaintiff was innocent of.
19. During pre-trial proceedings, Plaintiff's attorney provided Defendants, as well as the Queens County District Attorney's Office, with exculpatory evidence, including but not

limited to an alibi video, but Defendants continued their malicious prosecution of Plaintiff even after receiving such evidence.

20. Plaintiff went to court approximately four times before the case was dismissed in Courtroom AP-6 on January 10, 2023.
21. Plaintiff was wholly innocent of all charges, and THE CITY OF NEW YORK and its police department lacked probable cause or reasonable suspicion to justify arresting and prosecuting Plaintiff, but proceeded to arrest and prosecute him nonetheless.
22. Defendants' above mentioned actions were done without probable cause, just cause, reasonable grounds, justification or provocation.
23. By reason of the foregoing acts by Defendants, Plaintiff was caused to suffer loss of liberty, loss of earnings, legal fees, emotional anguish, distress and embarrassment, and upon information and belief, will continue to suffer same.
24. Plaintiff served a Notice of Claim on the City of New York on March 31, 2023 and testified at a General Municipal Law § 50-h hearing on July 28, 2023. More than thirty (30) days have elapsed since the claims upon which this action is based were presented to THE CITY OF NEW YORK, which has neglected and/or refused to make payment or adjustment thereof.
25. At all times herein mentioned, Defendants owed Plaintiff a special duty beyond what was owed to the public generally, and breached this special duty by committing the acts and omissions described herein.
26. Plaintiff's damages on each of the following causes of action exceed the jurisdictional limits of the lower courts of the State of New York.

**FIRST CAUSE OF ACTION:
NEGLIGENT HIRING/TRAINING/RETENTION**

27. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.
28. Defendant, THE CITY OF NEW YORK, was negligent in its operation, management, hiring, supervision, retention, and control of its police department, as well as in the training and conduct of the individually named defendants, as well as the other officers involved.
29. As a result of the above-mentioned negligence, NYPD officers, including DETECTIVE MICHAEL KLEIN, P.O. JOHN DOE #1 and P.O. JOHN DOE #2, falsely imprisoned and maliciously prosecuted Plaintiff.
30. The actions of the individual defendants complained of were part of the custom, practice, usage, regulation, and/or direction of Defendant, THE CITY OF NEW YORK.
31. Defendant, THE CITY OF NEW YORK, failed to properly screen, hire, train, supervise, and discipline their employees, including the individual defendants complained of, with regard to their propensity for, inter alia, false imprisonment and malicious prosecution.

**SECOND CAUSE OF ACTION:
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

32. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.
33. On August 19, 2022, at the aforementioned location, Defendants, their agents, servants, and/or employees wrongfully and falsely apprehended and detained Plaintiff without any right or grounds therefor, without any warrant or other legal process, without authority of the law, and without any reasonable cause or belief that Plaintiff was guilty of having

committed any crimes.

34. Defendants, and/or their agents, servants and/or employees, wrongfully, unlawfully, and without probable or reasonable cause, violently apprehended, handcuffed, restrained, and detained Plaintiff.
35. In addition, with full force of arms, Defendants laid hold of and compelled Plaintiff to go be detained at the 102nd Precinct and at Rikers Island.
36. Plaintiff was wholly innocent of any criminal charges; nevertheless, he was forced by Defendants to submit to the aforesaid apprehension and detainment entirely against his will.
37. Defendants, their agents, servants, and/or employees, as set forth above, intended to confine Plaintiff, Plaintiff was conscious of the confinement, Plaintiff did not consent to the confinement, and the confinement was not otherwise privileged.
38. By reason of the foregoing false imprisonment, Plaintiff was subjected to indignity, humiliation, ridicule, and loss of liberty.

**THIRD CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER
42 U.S.C. § 1983 & STATE LAW**

39. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.
40. Plaintiff's attorney provided Defendants, as well as the Queens County District Attorney's Office, with exculpatory evidence, including but not limited to an alibi and exculpatory video footage, but Defendants continued their malicious prosecution of Plaintiff even after receiving such evidence.
41. Plaintiff was wholly innocent of the charges that Defendants alleged he committed, yet

was forced to submit to court proceedings.

42. More specifically, Defendants, their agents, servants and/or employees falsely, maliciously, and without probable cause or provocation alleged that Plaintiff committed attempted murder in the second degree, attempted assault in the first degree, criminal possession of a weapon in the second degree, reckless endangerment in the first degree, and criminal possession of a firearm.
43. All charges were dismissed on January 10, 2023.
44. Defendants commenced and continued the aforementioned criminal proceeding against Plaintiff, the criminal proceeding terminated in Plaintiff's favor, there was an absence of probable cause for the commencement or continuation of the criminal proceeding, and Defendants acted with actual malice in doing so.
45. By reason of the foregoing malicious prosecution, Plaintiff was subjected to indignity, humiliation, ridicule, and loss of liberty.
46. The foregoing malicious prosecution violated Plaintiff's rights under federal and state law.

**FOURTH CAUSE OF ACTION:
DENIAL OF FAIR TRIAL
UNDER 42 U.S.C. § 1983**

47. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.
48. By neglecting to consider exculpatory evidence, maintaining the malicious prosecution, and continuing to deprive Plaintiff of his liberty, Defendants violated Plaintiff's right to a fair trial under federal law.

WHEREFORE, Plaintiff demands judgment in an amount currently believed to exceed the jurisdictional limits of all lower courts which otherwise would have jurisdiction over this matter on each Cause of Action, together with the costs and disbursements of this action.

Dated: Forest Hills, NY
October 23, 2023

Yours, etc.,



Law Office of Michael Dreishpoon, P.C.
Michael Dreishpoon, Esq.
Attorneys for Plaintiff
JEREMY ZABALA
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK)

ss.:

COUNTY OF QUEENS)

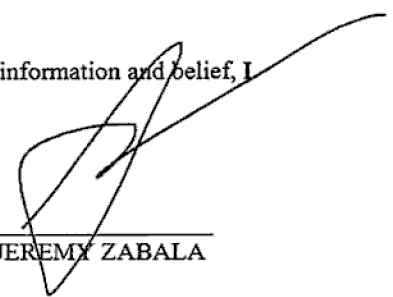
I, JEREMY ZABALA, being duly sworn, depose and say:

(1) I am the Plaintiff in the within action.

(2) I have read the foregoing complaint and know that the contents thereof are true

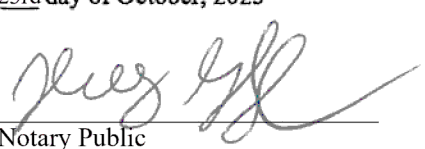
and accurate.

(3) As to those matters therein stated to be alleged upon information and belief, I believe them to be true.



JEREMY ZABALA

Sworn to before me this
23rd day of October, 2023



Notary Public

JEREMY GORFINKEL
NOTARY PUBLIC - STATE OF NEW YORK
Registration No. 02GO6327968
Qualified in Nassau County
Valid from 09/05/2023 to 09/05/2027